

Sarjeet Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 January 2024 · 2024:AHC:10690-DB · Writ-C No. 44888 of 2023 · **Writ disposed as infructuous after recovery was withdrawn.**

HEADNOTE

The Division Bench disposed of the writ because the cause did not survive once the Electricity Department withdrew the impugned recovery and stated that a fresh order would be passed after inquiry and an opportunity of hearing. The Executive Engineer's communication dated 13.01.2024 to the District Magistrate was taken on record. The Court recorded no finding on compliance with Clause 6.8.

FACTUAL SUMMARY

Sarjeet Tiwari filed Writ-C No. 44888 of 2023 in the Allahabad High Court against the State of U.P. and four others over a recovery citation of the Electricity Department. On 4 January 2024 the petition was adjourned at his counsel's request. On 11 January 2024 Department counsel sought time to check whether Clause 6.8 of the U.P. Electricity Supply Code, 2005 had been followed, and the Court directed that no coercive action be taken on the citation. The Executive Engineer then wrote to the District Magistrate on 13 January 2024.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

recovery withdrawn; writ infructuous

HOLDING

Once the Electricity Department withdrew the impugned recovery and stated that a fresh order would be passed after inquiry and an opportunity of hearing, the writ cause did not survive and the petition was disposed of. The Executive Engineer's communication dated 13.01.2024 to the District Magistrate was taken on record. The Court did not decide whether Clause 6.8 had been followed. ¶ 1-4

PRINCIPLE TAGS

6.8-procedure-mandatory On 11 January 2024 the Court required the Electricity Department to ascertain whether the Clause 6.8 procedure had been followed and, if not, what remedial steps it would take, and restrained coercive action on the recovery citation. On 23 January 2024 the Department stated that the recovery stood withdrawn and that a fresh order would follow inquiry and hearing, and the petition was disposed of without a finding on compliance. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.8 HAD BEEN COMPLIED WITH, AND THE CONTENT OF THE FRESH ORDER TO BE PASSED AFTER INQUIRY AND HEARING.

The recovery was withdrawn and the petition was disposed of as the cause did not survive, without a merits finding. ¶ 1-2